



CHAPTER 52.

An Act to amend the law relating to Trading with the A.D. 1916.
Enemy and the export of prohibited goods.
[18th December 1916.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. If, for the purpose of obtaining any licence, authority, or approval for any transaction or matter under or in connection with any Proclamation or Act relating to trading with the enemy, or for the purpose of obtaining a licence to export any goods the exportation of which without a licence is prohibited under any Proclamation or Order in, or of, Council, any person—

Penalties for
false state-
ments, &c.

(a) makes or presents any declaration or statement or representation which is false in any material particular ; or

(b) produces a guarantee certificate or undertaking which is false in any material particular, or has not been given by the person by whom it purports to have been given, or which has been in any way altered or tampered with ;

he shall be liable, on summary conviction, to a fine not exceeding five hundred pounds, or, alternatively, in the case of goods for export, treble the value of the goods, or to imprisonment with or without hard labour for a term not exceeding three months, or to both such fine and imprisonment, unless he proves that he had taken all reasonable steps to ascertain the truth of the statements made or contained in any document so presented or produced or to satisfy himself of the genuineness of the guarantee certificate or undertaking.

A.D. 1916.

Penalty for
mutilation of
documents, &c.
4 & 5 Geo. 5.
c. 87.

2. Where a person has been authorised under section two of the Trading with the Enemy Act, 1914, to inspect the books and documents of any person, firm, or company, and any book or document is found by him to have been destroyed, mutilated, or falsified, any person having or having had control of such book or document shall be guilty of a misdemeanour and liable to the same punishment as if he had been guilty of trading with the enemy unless he proves that the destruction, mutilation, or falsification was not intended for the purpose of concealing any transaction which would constitute an offence of trading with the enemy.

Removal of
doubts as to
5 & 6 Geo. 5.
c. 52. s. 2, and
39 & 40 Vict.
c. 36. s. 186.

42 & 43 Vict.
c. 21.

63 & 64 Vict.
c. 44.

3. For removing doubts, it is hereby declared--

(a) that in section two of the Customs (Exportation Restriction) Act, 1915 (which relates to penalties in respect of the exportation of goods in contravention of any Proclamation or Order in, or of, Council, under section eight of the Customs and Inland Revenue Act, 1879, or the Exportation of Arms Act, 1900, as amended by any subsequent enactments), the reference to goods exported includes goods brought to any quay or other place to be shipped for exportation in the United Kingdom; and

(b) that in section one hundred and eighty-six of the Customs Consolidation Act, 1876 (which relates to illegal dealings in goods subject to prohibitions and restrictions), the references to prohibited or restricted goods and to any prohibitions and restrictions includes (except where the context otherwise requires) references to goods, the exportation of which is prohibited or restricted, and to prohibitions and restrictions on the export of goods.

Short title.

4. This Act may be cited as the Trading with the Enemy and Export of Prohibited Goods Act, 1916.

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FOR

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